

26TRCV00810 26TRCV00810

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-24

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Case Number: 26TRCV00810 Hearing Date: August 24, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

KING

STOVALL, a minor, by and through his Guardian Ad Litem, CORA BROWN,

Plaintiff

Case No.:

26TRCV00810

vs.

[Tentative]

RULING RE:

DEMURRER

TO PLAINTIFF'S COMPLAINT

LOS

ANGELES UNIFIED SCHOOL DISTRICT; CITY OF HAWTHORNE; COUNTY OF LOS ANGELES;
LOS ANGELES COUNTY OFFICE OF EDUCATION; JOHN DOE; and DOES 1-50,
inclusive,

Defendants.

Hearing

Date: August 24, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiff's Complaint

Moving

Party: Defendant

Los Angeles Unified School District

Responding Party: Plaintiff King Stovall, a minor,
by and through his Guardian Ad Litem, Cora Brown

RULING

The court

considered the moving papers, opposition, and reply. The District's Demurrer to
Plaintiff's second cause of action is SUSTAINED without leave to amend.

PROCEDURAL BACKGROUND

On March 3, 2026, Plaintiff King Stovall, a minor, by and through his
Guardian Ad Litem, Cora Brown ("Plaintiff") filed a complaint against
Defendants Los Angeles Unified School District (the "District"), City of
Hawthorne, County of Los Angeles, Los Angeles County Office of Education, John
Doe, and DOES 1 through 50, inclusive, alleging two causes of action for: (1)
Negligent Failure to Supervise; and (2) Dangerous Condition of Public Property.

On May 5, 2026, Plaintiff's action against Defendant City of Hawthorne
was dismissed without prejudice. On June 12, 2026, Plaintiff's action against

Defendant Los Angeles County Office of Education was dismissed without prejudice.

On July 20, 2026, the District filed the instant demurrer to the second cause of action in Plaintiff's complaint. On August 12, 2026, Plaintiff filed an opposition. On August 17, 2026, the District filed a reply.

FACTUAL BACKGROUND

Plaintiff

alleges that on March 6, 2025, Plaintiff, a special needs student at Cimarron Avenue Elementary School (the "Premises"), was at the Premises when he experienced a sudden blood sugar spike due to his Type 1 diabetes. (Complaint, ¶ 15.)

Plaintiff alleges that he was taken to the nurse's office at the Premises for care, after which Defendant John Doe, a school employee, failed to adequately prepare the needle when attempting to administer Plaintiff's insulin dosages. (Complaint, ¶ 15.)

Plaintiff alleges that as a result, he experienced a dangerously high increase in his blood sugar levels and was injured. (Complaint, ¶ 15.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

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When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

The District demurs to the second cause of action in Plaintiff's complaint on the grounds that Plaintiff has failed to allege any physical defect of the Premises, and thus Plaintiff has failed to satisfy the requirements of Government Code Section 835. The District argues that third-party conduct unrelated to the condition of the property does not constitute a dangerous condition, and here, Plaintiff alleges only that the Premises constituted a dangerous condition because Defendant John Doe inadequately administered insulin to Plaintiff.

Opposing Party's Argument

Plaintiff argues that his second cause of action is sufficiently alleged because Plaintiff alleges that the insulin dosage syringes constituted the dangerous condition.

Reply Argument

The District reiterates its argument that Plaintiff has failed to state a claim for dangerous condition of public property because Plaintiff has not alleged the existence of a physical property defect, instead alleging only that Defendant John Doe's conduct caused Plaintiff's harm.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, the District's counsel declares that on June 25, 2026, she met and conferred telephonically with Plaintiff's counsel regarding the District's demurrer. (Wolpert Decl., ¶ 3.) The District's counsel declares that the parties were unable to reach an agreement. (Wolpert Decl., ¶ 3.) Therefore, the court finds that the meet and confer requirements have been satisfied.

B.

Second Cause of Action: Dangerous Condition of Public Property (Govt. Code Sections 815.2 and 835)

Government Code Section 835

states: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either:

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(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

The District demurs to Plaintiff’s second cause of action because Plaintiff has not alleged a dangerous condition of the Premises. The District argues that Plaintiff merely alleges that Defendant John Doe inadequately administered an insulin treatment to Plaintiff.

Because the District is a public entity, Plaintiff is held to a higher standard of pleading and must allege each element of a cause of action with particularity. *Searcy v. Hemet Unified School District* (1986) 177 Cal.App.4d 792, 802.) “A public entity may be liable for the dangerous condition of public property even where the immediate cause of plaintiff’s injury is a third party’s negligence or illegal act... if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality. [Citations.] But it is insufficient to show only harmful third party conduct... ‘[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a “dangerous condition” for which a public entity may be liable.’ [Citations.] There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third party conduct that injures the plaintiff. [Citations.]” (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1348.)

Here, Plaintiff alleges that “Defendant John Doe, a school staff member and/or employee, attempted to administer Plaintiff with an insulin as treatment for [Plaintiff’s] blood sugar spike. The insulin dosages were inadequately prepared and administered. As a result, Plaintiff suffered a dangerously high increase in his blood sugar levels and suffered injury.” (Complaint, ¶ 25.)

The court finds that Plaintiff has failed to allege a dangerous condition of the Premises, instead alleging only that a third party’s negligent conduct injured Plaintiff. Plaintiff’s complaint contains no factual allegations regarding a “defect in the physical condition of the property.” (*Cerna*, supra, 161 Cal.App.4th at 1348.)

Accordingly, the District's Demurrer to Plaintiff's second cause of action is SUSTAINED.

C.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court finds that the gravamen of Plaintiff's complaint is that Defendant John Doe's negligent conduct in administering the insulin treatment to Plaintiff caused Plaintiff's injury, which is wholly unrelated to the physical condition of the Premises. Thus, the court finds that there is no reasonable possibility of Plaintiff successfully amending his second cause of action. Accordingly, the court DENIES Plaintiff leave to amend his second cause of action.

CONCLUSION

Based on the foregoing, the District's Demurrer to Plaintiff's second cause of action is SUSTAINED without leave to amend.

Moving party is ordered to give notice of ruling.